

TENTATIVE RULING

Case: Reed v. Phi Beta Sigma Fraternity, Inc.
Case No. CV2025-3778

Hearing Date: June 17, 2026 **Department Fourteen** **9:00 a.m.**

On the Court's own motion, defendant City of Davis's demurrer to plaintiffs Asia Danae Reed and Amaya Mireya Morales' complaint is **CONTINUED** to **August 13, 2026**, at 9:00 a.m. in Department Fourteen. As the parties were unable to meet and confer before defendant filed this demurrer, the Court continues the hearing to allow the parties an opportunity to do so. (See *Dumas v. Los Angeles County Bd. of Supervisors* (2020) 45 Cal.App.5th 348, 355, fn. 3 [stating that if "a court learns no meet and confer has taken place, or concludes further conferences between counsel would likely be productive, it retains discretion to order counsel to meaningfully discuss the pleadings"]; Code Civ. Proc., § 430.41; Graham decl., ¶¶ 2-4.)

By **July 17, 2026**, the parties are **DIRECTED** to meet and confer, in person, by telephone, or by video conference, regarding the issues raised in defendant's demurrer.

By **July 30, 2026**, defendant **SHALL** file and serve a declaration regarding the parties' meet and confer efforts and identify the remaining issues for the Court's determination. If there are no remaining issues, defendant is **DIRECTED** to request that the August 13, 2026, hearing be vacated.

By **August 6, 2026**, plaintiffs **SHALL** file and serve a responsive declaration, unless defendant requests that the hearing be vacated.

The Court notes that plaintiffs' deadline to file an opposition has passed. (Code Civ. Proc., § 1005, subd. (b).)

TENTATIVE RULING

Case: **Shoman Auto Group v. Always Affordable Auto LLC**
Case No. CV2026-0845

Hearing Date: **June 17, 2026** **Department Thirteen** **9:00 a.m.**

Special motion to strike:

Defendants Always Affordable Auto, LLC and Ahmed Ishwait’s special motion to strike (anti-SLAPP) is **DENIED**. (Code Civ. Proc., § 425.16.) “Litigation of an anti-SLAPP motion involves a two-step process. First, the moving defendant bears the burden of establishing that the challenged allegations or claims arise from protected activity in which the defendant has engaged.” (*Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1009, internal citation and quotation marks omitted; Code Civ. Proc., § 425.16, subd. (b)(1).) “Second, for each claim that does arise from protected activity, the plaintiff must show the claim has at least minimal merit.” (*Bonni, supra*, 11 Cal.5th at p. 1009, internal quotation marks omitted.) The Court finds that defendant has not established that the challenged allegations in plaintiff Shoman Auto Group’s fourth cause of action for libel arise from protected activities. (*Ibid.*; Code Civ. Proc., § 425.16, subd. (e).) Therefore, the Court does not reach the second step regarding plaintiff’s probability of prevailing on the claim. (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 88.)

The notice of motion provides notice of this Court’s tentative ruling system. However, the notice does not contain the required language pursuant to Local Rule 11.2(b) (as amended, eff. Jan. 1, 2023). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motion to strike portions of complaint:

Defendants’ motion to strike portions of complaint is **DENIED**. (Code Civ. Proc., § 435 et seq.; Civ. Code, § 3294.) Defendants fail to establish that plaintiff’s allegations are insufficient to support a request for punitive damages. (*Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872; *Smith v. Superior Court* (1992) 10 Cal.App.4th 1033, 1042; Civ. Code, § 3294, subds. (a) & (c); see Complaint, ¶¶ 18-20 & 22.)

The notice of motion provides notice of this Court’s tentative ruling system. However, the notice does not contain the required language pursuant to Local Rule 11.2(b) (as amended, eff. Jan. 1, 2023). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.